IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF ILLINOIS
CHICAGO DIVISION

DARION WILLIAMS, Plaintiff, v. ACCURATE BACKGROUND, LLC, Defendant.	Case No. 1:23-cv-00175 Judge Martha M. Pacold

DEFENDANT'S ANSWER AND AFFIRMATIVE AND ADDITIONAL DEFENSES TO PLAINTIFF'S COMPLAINT

Defendant Accurate Background, LLC ("Accurate"), by and through its undersigned counsel, hereby submits its Answer and Affirmative Defenses to Plaintiff's Complaint as follows:

JURISDICTION AND VENUE

COMPLAINT ¶1:

Jurisdiction of this Court arises under 28 U.S.C. § 1331 and 15 U.S.C. § 1681 *et seq*.

ANSWER:

Accurate admits that jurisdiction is proper in this Court. Accurate denies the remaining allegations in Paragraph 1 of the Complaint,

COMPLAINT ¶2:

Venue is proper pursuant to 28 U.S.C. § 1391(b)(2) because a substantial part of the events or omissions giving rise to the claim occurred in this District.

ANSWER:

Accurate admits that venue is proper in this Court. Accurate denies the remaining allegations in Paragraph 2 of the Complaint.

COMPLAINT ¶3:

Defendant regularly transacts business within the District. Defendant regularly directs business at the District. Defendant voluntarily and purposefully avails itself of the protections of the District, such that personal jurisdiction is established.

ANSWER:

Paragraph 3 of the Complaint contains legal conclusions to which no response is required. To the extent a response is required, Accurate admits that jurisdiction is proper in this Court based on the allegations in the Complaint and admits that it conducts business within this District. Accurate denies the remaining allegations in Paragraph 3 of the Complaint.

PARTIES

COMPLAINT ¶4:

Plaintiff, Darion Williams, is a natural person who resides in Will County, Illinois. Plaintiff is a "consumer" as that term is defined by 15 U.S.C. § 1681a(c).

ANSWER:

Accurate admits that Plaintiff is a natural person and a consumer, as defined by the FCRA. Accurate is without knowledge or information sufficient to form a belief as to the truth of the remaining allegations in Paragraph 4 of the Complaint.

COMPLAINT ¶5:

Defendant regularly compiles and distributes consumer credit information in exchange for monetary compensation. Therefore, Defendant is a "consumer reporting agency" as defined in 15 U.S.C. § 1681a(f).

ANSWER:

Accurate admits that it provides certain services as a consumer reporting agency, as that phrase is defined by the FCRA, and as to those services only. Accurate further admits that, upon request from its customers and for a permissible purpose, it prepares and sells consumer reports. Accurate denies the remaining allegations in Paragraph 5 of the Complaint.

COMPLAINT ¶6:

Defendant maintains a principal place of business located at 7515 Irvine Center Drive, Irvine, California 92618 and is incorporated in California. Defendant may be served through its registered agent, c/o C T Corporation System located at 330 N. Brand Blvd., Suite 700, Glendale, CA 91203.

ANSWER:

Accurate admits that it is incorporated in California, admits that it maintains offices at the address identified in Paragraph 6, and admits that it can be served with process by way of its registered agent. Accurate denies any remaining allegations in Paragraph 6 of the Complaint.

COMPLAINT ¶7:

At all times relevant to this Complaint, Defendant acted through its agents, employees, officers, members, directors, heirs, successors, assigns, principals, trustees, sureties, subrogees, representatives, and insurers.

ANSWER:

Accurate admits that it conducts business through its employees and others. Accurate denies the remaining allegations in Paragraph 7 of the Complaint.

FACTUAL ALLEGATIONS

COMPLAINT ¶8:

Plaintiff incorporates the above paragraphs of this Complaint as though they are fully detailed herein.

ANSWER:

Accurate restates its answers to Paragraphs 1 through 7 as its answer to Paragraph 8 of the Complaint.

COMPLAINT ¶9:

In or around January 2021, Plaintiff applied for employment with Amazon.

ANSWER:

Accurate is without knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 9 of the Complaint.

COMPLAINT ¶10:

As a part of the application, Plaintiff consented to a background check.

ANSWER:

Accurate, on information and belief, admits the allegations in Paragraph 10 of the Complaint.

COMPLAINT ¶11:

Upon information and belief, Amazon utilizes Accurate to conduct background checks on prospective employees.

ANSWER:

Accurate admits that it has prepared background reports at the request of Amazon. Accurate denies any remaining allegations in Paragraph 11 of the Complaint.

COMPLAINT ¶12:

Upon information and belief, Amazon purchased Plaintiff's employment purposed consumer report ("background report" or "consumer report") from Defendant on or about February 2, 2021.

ANSWER:

Accurate admits that, on or about February 12, 2021, Amazon requested that Accurate prepare a background report regarding Plaintiff. Accurate denies any remaining allegations in Paragraph 12 of the Complaint.

COMPLAINT ¶13:

Upon information and belief, Defendant completed Plaintiff's Accurate background report on or about February 19, 2021.

ANSWER:

Accurate admits that, on or about February 19, 2021, it completed a report regarding Plaintiff. Accurate denies any remaining allegations in Paragraph 13 of the Complaint.

COMPLAINT ¶14:

Upon information and belief, Defendant provided Amazon with a copy of Plaintiff's background report on or about February 19, 2021.

ANSWER:

Accurate admits that, on or about February 19, 2021, it provided Amazon with a copy of Plaintiff's background report. Accurate denies any remaining allegations in Paragraph 14 of the Complaint.

COMPLAINT ¶15:

Upon information and belief, Defendant provided Plaintiff with a copy of his background report in or around February 2021.

ANSWER:

Accurate admits that, on or about February 19, 2021, Plaintiff was sent a copy of his report. Accurate denies any remaining allegations in Paragraph 15 of the Complaint.

COMPLAINT ¶16:

Upon review, Plaintiff beyond shocked to see that his Accurate background report contained criminal records that do not belong to him.

ANSWER:

Accurate is without knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 16 of the Complaint with respect to Plaintiff's subjective state of mind. Accurate denies all remaining allegations in Paragraph 16, and denies any violation of the FCRA or any other law.

COMPLAINT ¶17:

Specifically, Plaintiff's Accurate background report included a criminal record filed in Illinois on April 20, 2016.

ANSWER:

Accurate states that the referenced document is the best evidence of its contents and denies any allegations in Paragraph 17 of the Complaint that are inconsistent with the contents of the referenced document. Accurate denies any remaining allegations in Paragraph 17 of the Complaint.

COMPLAINT ¶18:

The criminal record, case number 2016CR0583701, was associated with a felony conviction for "Involuntary Manslaughter."

ANSWER:

Accurate states that the referenced document is the best evidence of its contents and denies any allegations in Paragraph 18 of the Complaint that are inconsistent with the contents of the referenced document. Accurate denies any remaining allegations in Paragraph 18 of the Complaint.

COMPLAINT ¶19:

Hereinafter case number 2016CR0583701 (and its associated charge) will be referred to as the Disputed Criminal Record.

ANSWER:

Paragraph 19 of the Complaint contains no allegations directed at Accurate and therefore no response is required. To the extent a response is required, Accurate admits that Plaintiff's Complaint purports to refer to "case number 2016CR0583701 (and its associated charge)" as "the Disputed Criminal Record." Accurate denies any remaining allegations in Paragraph 19 of the Complaint.

COMPLAINT ¶20:

Plaintiff has never been arrested for, charged with, or convicted of "Involuntary Manslaughter."

ANSWER:

Accurate is without knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 20 of the Complaint. Accurate denies any remaining allegations in Paragraph 20, and denies any violation of the FCRA or any other law.

COMPLAINT ¶21:

Upon information and belief, Defendant erroneously associated another consumer's criminal conviction with Plaintiff's background report and/or file.

ANSWER:

Accurate states that the referenced document is the best evidence of its contents and denies any allegations in Paragraph 21 of the Complaint that are inconsistent with the contents of the referenced document. Accurate denies all remaining allegations in Paragraph 21, and denies any violation of the FCRA or any other law.

COMPLAINT ¶22:

Although the Accurate background report indicates Defendant allegedly matched Plaintiff's first name and last name to the Disputed Criminal Record, Defendant did not match the Disputed Criminal Record with Plaintiff's middle name, social security number, or any other personal identifiers.

ANSWER:

Accurate states that the referenced document is the best evidence of its contents and denies any allegations in Paragraph 22 of the Complaint that are inconsistent with the contents of the referenced document. Accurate denies all remaining allegations in Paragraph 22, and denies any violation of the FCRA or any other law.

COMPLAINT ¶23:

"Darion Williams" is a very common name.

ANSWER:

Accurate denies the allegations in Paragraph 23 of the Complaint.

COMPLAINT ¶24:

Upon information and belief, the criminal defendant associated with the Disputed Criminal Records does not have the same middle name nor middle initial as Plaintiff.

ANSWER:

Accurate is without knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 24 of the Complaint.

COMPLAINT ¶25:

Upon information and belief, the criminal defendant associated with the Disputed Criminal Records has a middle name beginning with "M."

ANSWER:

Accurate is without knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 25 of the Complaint.

COMPLAINT ¶26:

Plaintiff's middle name begins with "J."

ANSWER:

Accurate, on information and belief, admits the allegations in Paragraph 26 of the Complaint.

COMPLAINT ¶27:

Upon information and belief, Defendant matched the Disputed Criminal Record with Plaintiff based only on his first name, last name, and date of birth (not any other personal identifiers).

ANSWER:

Accurate states that the referenced document is the best evidence of its contents and denies any allegations in Paragraph 27 of the Complaint that are inconsistent with the contents of

the referenced document. Accurate denies all remaining allegations in Paragraph 27, and denies any violation of the FCRA or any other law.

COMPLAINT ¶28:

Defendant's reporting of the Disputed Criminal Record in Plaintiff's background report(s) is patently inaccurate.

ANSWER:

Accurate denies the allegations in Paragraph 28 of the Complaint.

COMPLAINT ¶29:

Shortly thereafter, Plaintiff was denied for the position with Amazon.

ANSWER:

Accurate is without knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 29 of the Complaint.

COMPLAINT ¶30:

In or around February 2021, Plaintiff disputed with Defendant.

ANSWER:

Accurate denies the allegations in Paragraph 30 of the Complaint.

COMPLAINT ¶31:

Upon information and belief, Defendant removed the Disputed Criminal Record from Plaintiff's file in or around February or March 2021.

ANSWER:

Accurate denies the allegations in Paragraph 31 of the Complaint.

COMPLAINT ¶32:

However, it was too little too late as Plaintiff had already been denied for the position with Amazon.

ANSWER:

Accurate denies the allegations in Paragraph 32 of the Complaint.

COMPLAINT ¶33:

Upon information and belief, had Defendant not inaccurately reported the Disputed Criminal Record, Plaintiff would have been more likely to be approved for employment with Amazon in February 2021.

ANSWER:

Accurate denies the allegations in Paragraph 33 of the Complaint.

COMPLAINT ¶34:

In or around November 2022, Plaintiff applied for employment with Amazon once again.

ANSWER:

Accurate is without knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 34.

COMPLAINT ¶35:

Plaintiff interviewed for the position and received a contingent offer for a start date of December 2, 2022.

ANSWER:

Accurate is without knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 35.

COMPLAINT ¶36:

The offer was contingent on Plaintiff passing a background check.

ANSWER:

Accurate is without knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 36.

COMPLAINT ¶37:

Upon information and belief, Amazon purchased Plaintiff's background report from Defendant on or about November 12, 2022.

ANSWER:

Accurate admits that, on or about November 12, 2022, Amazon requested Plaintiff's background report. Accurate denies any remaining allegations in Paragraph 37 of the Complaint.

COMPLAINT ¶38:

Upon information and belief, Defendant completed Plaintiff's Accurate background report on or before November 18, 2022.

ANSWER:

Accurate admits that, on or about November 18, 2022, it completed a report regarding Plaintiff. Accurate denies any remaining allegations in Paragraph 38 of the Complaint.

COMPLAINT ¶39:

Upon information and belief, Defendant provided Amazon with a copy of Plaintiff's background report on or before November 18, 2022.

ANSWER:

Accurate admits that, on or about November 18, 2022, it provided Amazon with a copy of Plaintiff's background report. Accurate denies any remaining allegations in Paragraph 39 of the Complaint.

COMPLAINT ¶40:

Upon information and belief, Defendant provided Plaintiff with a copy of his background report on or before November 18, 2022.

ANSWER:

Accurate admits that, on or about November 18, 2022, it provided Plaintiff with a copy of his background report. Accurate denies any remaining allegations in Paragraph 40 of the Complaint.

COMPLAINT ¶41:

Upon review, Plaintiff beyond shocked to see that Accurate had re-inserted the Disputed Criminal Record into Plaintiff's background report/file.

ANSWER:

Accurate is without knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 41 of the Complaint with respect to Plaintiff's subjective state of mind. Accurate denies all remaining allegations in Paragraph 41, and denies any violation of the FCRA or any other law.

COMPLAINT ¶42:

On or about November 18, 2022, Plaintiff disputed with Defendant by phone.

ANSWER:

Accurate admits that it received a dispute from Plaintiff regarding his November 2022 report. Accurate denies any remaining allegations in Paragraph 42 of the Complaint.

COMPLAINT ¶43:

Plaintiff informed Defendant that Defendant had previously removed the Disputed Criminal Record from his file after his dispute in 2021.

ANSWER:

Accurate admits that Plaintiff disputed the charge associated with Case No. 16CR0583701. Accurate denies the remaining allegations in Paragraph 43 of the Complaint.

COMPLAINT ¶44:

Defendant informed Plaintiff that it would investigate his dispute and fix the error.

ANSWER:

Accurate admits that it conducted a reinvestigation in response to Plaintiff's dispute. Accurate denies any remaining allegations in Paragraph 44 of the Complaint.

COMPLAINT ¶45:

Plaintiff was hopeful that Defendant would correct its reporting, but anxious that the report would not be corrected before his anticipated start date of December 2, 2022.

ANSWER:

Accurate is without knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 45 of the Complaint with respect to Plaintiff's subjective state of mind. Accurate denies all remaining allegations in Paragraph 45, and denies any violation of the FCRA or any other law.

COMPLAINT ¶46:

Plaintiff had spoken with Amazon and was told the issue would need to be resolved with Accurate before his start date.

ANSWER:

Accurate is without knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 46 of the Complaint.

COMPLAINT ¶47:

In mid to late December 2022, Plaintiff received a copy of his dispute results from Defendant.

ANSWER:

Accurate admits that it sent Plaintiff the results of his dispute on December 7, 2022. Accurate denies any remaining allegations in Paragraph 47 of the Complaint.

COMPLAINT ¶48:

Defendant's dispute response was dated December 7, 2022.

ANSWER:

Accurate admits the allegations in Paragraph 48 of the Complaint.

COMPLAINT ¶49:

The dispute response stated that Defendant removed the Disputed Criminal Record from Plaintiff's background report.

ANSWER:

Accurate admits the allegations in Paragraph 49 of the Complaint.

COMPLAINT ¶50:

Unfortunately, it was once again, too little too, late.

ANSWER:

Accurate denies the allegations in Paragraph 50 of the Complaint.

COMPLAINT ¶51:

Plaintiff reached out to Amazon and his recruiter to see if he could begin work.

ANSWER:

Accurate is without knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 51 of the Complaint.

COMPLAINT ¶52:

Plaintiff was unable to get ahold of anyone at Amazon or his recruiter.

ANSWER:

Accurate is without knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 52 of the Complaint.

COMPLAINT ¶53:

Plaintiff reasonably believes that Amazon and his recruiter ignored him and did not return his calls because of Defendant's inaccurate reporting.

ANSWER:

Accurate is without knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 53 of the Complaint with respect to Plaintiff's subjective state of mind. Accurate denies all remaining allegations in Paragraph 53, and denies any violation of the FCRA or any other law.

COMPLAINT ¶54:

As of the filing of this Complaint, Plaintiff has still not heard back from Amazon.

ANSWER:

Accurate is without knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 54 of the Complaint.

COMPLAINT ¶55:

Upon information and belief, had Defendant not inaccurately reported the Disputed Criminal Record, Plaintiff would have been more likely to be approved for employment with Amazon in November/December 2022.

ANSWER:

Accurate denies the allegations in Paragraph 55 of the Complaint.

COMPLAINT ¶56:

Upon information and belief, Defendant fails to maintain and/or follow reasonable procedures to assure maximum possible accuracy of the consumer information it provides to employers.

ANSWER:

Accurate denies the allegations in Paragraph 56 of the Complaint.

COMPLAINT ¶57:

Upon information and belief, Defendant knowingly and willfully maintains deficient procedures because reporting more information is more profitable than reporting less and potentially leaving information off of a consumer report.

ANSWER:

Accurate denies the allegations in Paragraph 57 of the Complaint.

COMPLAINT ¶58:

For example, upon information and belief, Defendant allowed a criminal conviction for manslaughter to appear on Plaintiff's consumer report without matching his full name, address, social security number, driver's license, or other personal identifiers.

ANSWER:

Accurate denies the allegations in Paragraph 58 of the Complaint.

COMPLAINT ¶59:

Instead of employing reasonable procedure, as required by the FCRA, Defendant blindly collects information from unreliable third-party vendors to repackage and sell in its own employment screening products.

ANSWER:

Accurate denies the allegations in Paragraph 59 of the Complaint.

COMPLAINT ¶60:

Upon information and belief, Defendant buys consumer information from third-party vendors that do not have reasonable procedures in place to ensure that the information they sell is of maximum possible accuracy.

ANSWER:

Accurate denies the allegations in Paragraph 60 of the Complaint.

COMPLAINT ¶61:

Defendant is aware that criminal information is often matched based on incomplete personal identifiers.

ANSWER:

Accurate denies the allegations in Paragraph 61 of the Complaint.

COMPLAINT ¶62:

Upon information and belief, Defendant purchased Plaintiff's information from one or more third-party vendors that merely compile criminal data from various online sources without verifying its accuracy with actual court records.

ANSWER:

Accurate denies the allegations in Paragraph 62 of the Complaint.

COMPLAINT ¶63:

Upon information and belief, none of Defendant's third-party vendors warrant the accuracy of the information they sell.

ANSWER:

Accurate denies the allegations in Paragraph 63 of the Complaint.

COMPLAINT ¶64:

Upon information and belief, Defendant does not exercise due diligence in ensuring it is contracting with reliable third-party vendors.

ANSWER:

Accurate denies the allegations in Paragraph 64 of the Complaint.

COMPLAINT ¶65:

Upon information and belief, Defendant does not conduct periodic quality assurance audits to ensure that it is receiving reliable consumer information from its third-party vendors.

ANSWER:

Accurate denies the allegations in Paragraph 65 of the Complaint.

COMPLAINT ¶66:

Upon information and belief, Defendant has been sued under the FCRA by consumers in the past for associating erroneous criminal records with job applicants and/or employees.

ANSWER:

Accurate admits that it has been named as a defendant in prior lawsuits alleging violations of the FCRA. Accurate denies any violation of the law and denies any remaining allegations in Paragraph 66 of the Complaint.

COMPLAINT ¶67:

Therefore, Defendant has actual notice that its procedures often result in the preparation of inaccurate consumer reports and dissemination of inaccurate consumer information.

ANSWER:

Accurate denies the allegations in Paragraph 67 of the Complaint.

COMPLAINT ¶68:

Defendant's reporting is particularly egregious because Defendant had notice by way of Plaintiff's 2021 dispute that its reporting was inaccurate.

ANSWER:

Accurate denies the allegations in Paragraph 68 of the Complaint.

COMPLAINT ¶69:

It is wholly unreasonable for Defendant to maintain procedures that it knows often lead to inaccurate consumer reporting with grave consequences.

ANSWER:

Accurate admits that, at all times, it complies with its obligations under the FCRA and maintains and follows reasonable procedures to assure maximum possible accuracy of the information it reports on consumer reports. Accurate denies the remaining allegations in Paragraph 69 of the Complaint.

COMPLAINT ¶70:

Despite knowing that its procedures are unreasonable, Defendant recklessly and knowingly fails to employ procedures that assure the maximum possible accuracy of consumer information compiled and published in its consumer reports.

ANSWER:

Accurate denies the allegations in Paragraph 70 of the Complaint.

COMPLAINT ¶71:

Upon information and belief, Defendant does not independently investigate the information it buys from third-party vendors before including it in consumers' background reports.

ANSWER:

Accurate denies the allegations in Paragraph 71 of the Complaint.

COMPLAINT ¶72:

Instead, Defendant has unreasonably decided that it is entitled to rely completely on third-party vendors to ensure the information included in its consumer reports is accurate.

ANSWER:

Accurate denies the allegations in Paragraph 72 of the Complaint.

COMPLAINT ¶73:

The injuries suffered by Plaintiff as a direct result of Defendant's erroneous reporting are the type of injuries that the FCRA was enacted to prevent.

ANSWER:

Accurate denies the allegations in Paragraph 73 of the Complaint.

COMPLAINT ¶74:

Defendant knows that its services are used to make significant consumer decisions.

ANSWER:

Accurate is without knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 74 of the Complaint, but denies any violation of the law or the FCRA.

COMPLAINT ¶75:

Upon information and belief, Defendant is aware that its decisions regarding employees are often adopted by the employer reviewing the consumer report.

ANSWER:

Accurate denies the allegations in Paragraph 75 of the Complaint.

COMPLAINT ¶76:

At common law, Defendant's conduct would have given rise to causes of action based on defamation and invasion of privacy.

ANSWER:

Accurate denies the allegations in Paragraph 76 of the Complaint.

COMPLAINT ¶77:

As a direct result of Defendant's conduct, Plaintiff was denied for employment with Amazon on two separate occasions.

ANSWER:

Accurate denies the allegations in Paragraph 77 of the Complaint.

COMPLAINT ¶78:

As a direct result of Defendant's conduct, Plaintiff suffers from financial instability.

ANSWER:

Accurate denies the allegations in Paragraph 78 of the Complaint.

COMPLAINT ¶79:

As a direct result of Defendant's conduct, Plaintiff has to borrow money from his family and cannot afford to move out of his mother's home.

ANSWER:

Accurate denies the allegations in Paragraph 79 of the Complaint.

COMPLAINT ¶80:

Defendant's conduct has also caused tension between Plaintiff and his family.

ANSWER:

Accurate denies the allegations in Paragraph 80 of the Complaint.

COMPLAINT ¶81:

As a direct result of Defendant's conduct, Plaintiff is stressed, distracted, humiliated, embarrassed, and anxious.

ANSWER:

Accurate denies the allegations in Paragraph 81 of the Complaint.

COMPLAINT ¶82:

Defendant's conduct also caused Plaintiff to have difficulty sleeping and migraines. Consequently, Plaintiff suffers from sleepless nights.

ANSWER:

Accurate denies the allegations in Paragraph 82 of the Complaint.

COMPLAINT ¶83:

As a direct result of Defendant's conduct, Plaintiff has suffered actual damages including but not limited to: damage to his reputation, wasted time, sleepless nights, job denials, financial instability, emotional distress, including mental anguish, frustration, anxiety, humiliation, embarrassment, and other losses that are continuing in nature.

ANSWER:

Accurate denies the allegations in Paragraph 83 of the Complaint.

COUNT I

15 U.S.C. § 1681e(b)

COMPLAINT ¶84:

Plaintiff incorporates by reference all of the above paragraphs of this Complaint as through fully stated herein.

ANSWER:

Accurate restates its answers to Paragraphs 1 through 83 as its answer to Paragraph 84 of the Complaint.

COMPLAINT ¶85:

Despite its name, the Fair Credit Reporting Act covers more than just credit reporting, it regulates all "consumer reports." 15 U.S.C. § 1681a(d).

ANSWER:

Paragraph 85 consists entirely of legal conclusions and, therefore, no answer is required. To the extent an answer is required, Accurate admits that the FCRA regulates more than "credit reporting," and that it provides a definition of a "consumer report" in 15 U.S.C. § 1681a(d). Accurate denies any remaining allegations in Paragraph 85 of the Complaint.

COMPLAINT ¶86:

In the parlance of the FCRA, background reports for employment purposes are "consumer reports."

ANSWER:

Paragraph 86 of the Complaint consists entirely of legal conclusions and, therefore, no answer is required. To the extent an answer is required, Accurate admits that the FCRA provides a definition of a "consumer report" in 15 U.S.C. § 1681(a)(d). Accurate denies any remaining allegations in Paragraph 86 of the Complaint and denies any violation of the law or the FCRA.

COMPLAINT ¶87:

The FCRA provides a number of protections for job applicants and/or employees who are subject to background reports.

ANSWER:

Paragraph 87 of the Complaint consists entirely of legal conclusions and, therefore, no answer is required. To the extent an answer is required, Accurate admits that the FCRA sets forth certain reporting and investigation requirements for consumer reporting agencies. Accurate denies any remaining allegations in Paragraph 87 of the Complaint and denies any violation of the law or the FCRA.

COMPLAINT ¶88:

The FCRA imposes duties on consumer reporting agencies, like Defendant, to ensure that "consumer reporting agencies exercise their grave responsibilities with fairness, impartiality, and a respect for the consumer's right to privacy." 15 U.S.C. § 1681.

ANSWER:

Paragraph 88 of the Complaint consists entirely of legal conclusions and an incomplete quote from the cited statute and, therefore, no answer is required. To the extent an answer is required, Accurate refers to the cited statute and denies any allegations in Paragraph 88 that are inconsistent with the cited statute. Accurate denies any remaining allegations in Paragraph 88 of the Complaint and denies any violation of the law or the FCRA.

COMPLAINT ¶89:

Under 15 U.S.C. § 1681e(b), "whenever a consumer reporting agency prepares a consumer report it shall follow reasonable procedures to assure maximum possible accuracy of the information concerning the individual about whom the report relates."

ANSWER:

Paragraph 89 of the Complaint consists entirely of legal conclusions and an incomplete quote from the cited statute and, therefore, no answer is required. To the extent an answer is required, Accurate refers to the cited statute and denies any allegations in Paragraph 89 that are

inconsistent with the cited statute. Accurate denies any remaining allegations in Paragraph 89 of the Complaint and denies any violation of the law or the FCRA.

COMPLAINT ¶90:

Defendant violated 15 U.S.C. § 1681e(b) by failing to establish, maintain, and/or follow reasonable procedures to assure maximum possible accuracy in the preparation of Plaintiff's consumer reports.

ANSWER:

Accurate denies the allegations in Paragraph 90 of the Complaint.

COMPLAINT ¶91:

Specifically, Defendant failed to establish, maintain, and/or follow procedures to prevent it from inaccurately reporting another consumer's criminal conviction on Plaintiff's consumer reports.

ANSWER:

Accurate denies the allegations in Paragraph 91 of the Complaint.

COMPLAINT ¶92:

As a result of Defendant's conduct, action, and inaction, Plaintiff suffered actual damages which have been further described above.

ANSWER:

Accurate denies the allegations in Paragraph 92 of the Complaint.

COMPLAINT ¶93:

Defendant's violations of the FCRA were willful and knowing. Further, Defendant's violations were committed in reckless disregard of Plaintiff's rights as a consumer. Accordingly, Defendant is liable for Plaintiff's statutory, actual, and punitive damages pursuant to 15 U.S.C. § 1681n.

ANSWER:

Accurate denies the allegations in Paragraph 93 of the Complaint.

COMPLAINT ¶94:

Alternatively, Defendant's violations of the FCRA were negligent, rendering it liable for Plaintiff's statutory and actual damages pursuant to 15 U.S.C. § 1681o.

ANSWER:

Accurate denies the allegations in Paragraph 94 of the Complaint.

COMPLAINT ¶95:

In any event, Defendant is liable for Plaintiff's reasonable attorney's fees and costs pursuant to 15 U.S.C. §§ 1681n, 1681o.

ANSWER:

Accurate denies the allegations in Paragraph 95 of the Complaint.

COUNT II

15 U.S.C. § 1681i

COMPLAINT ¶96:

Plaintiff re-alleges and incorporates by reference the allegations set forth in preceding paragraphs as if fully stated herein.

ANSWER:

Accurate restates its answers to Paragraphs 1 through 95 as its answer to Paragraph 96 of the Complaint.

COMPLAINT ¶97:

The FCRA mandates that a CRA conduct an investigation of the accuracy of information "[I]f the completeness or accuracy of any item of information contained in a consumer's file" is disputed by the consumer. *See* 15 U.S.C. § 1681i(a)(1). The Act imposed a 30-day time limit for the completion of such an investigation. *Id*.

ANSWER:

Paragraph 97 of the Complaint consists entirely of legal conclusions and, therefore, no answer is required. To the extent an answer is required, Accurate states that the cited statute is the best evidence of its requirements and contents and denies any allegations in Paragraph 97 that are inconsistent with the cited statute. Accurate denies any remaining allegations in Paragraph 97.

COMPLAINT ¶98:

The FCRA provides that if a CRA conducts an investigation of disputed information and confirms that the information is in fact inaccurate or is unable to verify the accuracy of the disputed information, the CRA is required to delete that item of information from the consumer's file. *See* 15 U.S.C. § 1681i(a)(5)(A).

ANSWER:

Paragraph 98 of the Complaint consists entirely of legal conclusions and, therefore, no answer is required. To the extent an answer is required, Accurate states that the cited statute is the best evidence of its requirements and contents and denies any allegations in Paragraph 98 that are inconsistent with the cited statute. Accurate denies any remaining allegations in Paragraph 98.

COMPLAINT ¶99:

15 U.S.C. § 1681i(a)(5)(B)(i) mandates that information that was previously deleted from a consumer's file pursuant to subparagraph (A) "may not be reinserted in the file by the consumer reporting agency unless the person who furnishes the information certifies that the information is complete and accurate."

ANSWER:

Paragraph 99 of the Complaint consists entirely of legal conclusions and, therefore, no answer is required. To the extent an answer is required, Accurate states that the cited statute is the best evidence of its requirements and contents and denies any allegations in Paragraph 99 that are inconsistent with the cited statute. Accurate denies any remaining allegations in Paragraph 99.

COMPLAINT ¶100:

Further, pursuant to 15 U.S.C. § 1681i(a)(5)(B)(ii), if any information that has previously been deleted from a consumer's file is reinserted into the file, a consumer reporting agency must "notify the consumer of the reinsertion in writing not later than 5 business days after the reinsertion or, if authorized by the consumer for that purpose, by any other means available to the agency."

ANSWER:

Paragraph 100 of the Complaint consists entirely of legal conclusions and, therefore, no answer is required. To the extent an answer is required, Accurate states that the cited statute is the best evidence of its requirements and contents and denies any allegations in Paragraph 100 that are inconsistent with the cited statute. Accurate denies any remaining allegations in Paragraph 100.

COMPLAINT ¶101:

The FCRA also requires that consumer reporting agencies, like Defendant, "maintain reasonable procedures designed to prevent the reappearance in a consumer's file, and in consumer reports on the consumer, of information that is deleted pursuant to this paragraph." 15 U.S.C. § 1681i(a)(5)(C).

ANSWER:

Paragraph 101 of the Complaint consists entirely of legal conclusions and, therefore, no answer is required. To the extent an answer is required, Accurate states that the cited statute is the best evidence of its requirements and contents and denies any allegations in Paragraph 101 that are inconsistent with the cited statute. Accurate denies any remaining allegations in Paragraph 101.

COMPLAINT ¶102:

On at least one occasion during 2021, Plaintiff disputed the inaccurate information with Defendant and requested that it delete the criminal record that did not belong to him.

ANSWER:

Accurate denies the allegations in Paragraph 102 of the Complaint.

COMPLAINT ¶103:

In response to Plaintiff's dispute, in or around February 2021, Defendant deleted the Disputed Criminal Record from Plaintiff's background report.

ANSWER:

Accurate denies the allegations in Paragraph 103 of the Complaint. Answering further, Accurate has no record of receiving a dispute from Plaintiff in or around February 2021.

COMPLAINT ¶104:

Sometime thereafter, Defendant re-inserted at least nine prescriptions associated with at least five different physicians into Plaintiff's consumer report/file.

ANSWER:

Accurate denies the allegations in Paragraph 104 of the Complaint.

COMPLAINT ¶105:

Defendant violated 15 U.S.C. § 1681i by reinserting information that it previously deleted from Plaintiff's consumer report/file pursuant to 15 U.S.C. § 1681i(A), failing to notify Plaintiff within five days of the reinsertion, and failing to maintain reasonable procedures to prevent the information's reappearance in Plaintiff's consumer report(s)/file.

ANSWER:

Accurate denies the allegations in Paragraph 105 of the Complaint.

COMPLAINT ¶106:

As a result of Defendant's conduct, action, and inaction, Plaintiff suffered from harm as further described herein.

ANSWER:

Accurate denies the allegations in Paragraph 106 of the Complaint.

COMPLAINT ¶107:

Defendant's violations of the FCRA were both willful and knowing. Therefore, Defendant is liable to Plaintiff for actual, statutory, and punitive damages in an amount to be determined at trial. 15 U.S.C. §§ 1681n, 1681o.

ANSWER:

Accurate denies the allegations in Paragraph 107 of the Complaint.

COMPLAINT ¶108:

Alternatively, Defendant's violations of the FCRA were negligent. Therefore, Defendant is liable to Plaintiff for statutory and actual damages. 15 U.S.C. § 1681o.

ANSWER:

Accurate denies the allegations in Paragraph 108 of the Complaint.

COMPLAINT ¶109:

In any event, Defendant is liable for Plaintiff's reasonable attorney's fees and costs. 15 U.S.C. §§ 1681n, 1681o.

ANSWER:

Accurate denies the allegations in Paragraph 109 of the Complaint.

TRIAL BY JURY

COMPLAINT ¶110:

Plaintiff is entitled to and hereby demands a trial by jury on all issues so triable.

ANSWER:

Accurate admits that Plaintiff purports to demand a trial by jury. Accurate objects to a trial by jury to the extent Plaintiff seeks equitable relief or for any other relief for which Plaintiff is not entitled to a jury. Accurate denies any remaining allegations in the Jury Demand.

ANSWER TO PRAYER FOR RELIEF

Accurate denies that Plaintiff is entitled to any of the relief sought by the Complaint or any relief whatsoever.

AFFIRMATIVE AND OTHER DEFENSES

Without assuming the burden of proof where it otherwise rests with Plaintiff, Accurate asserts the following affirmative and other defenses to the Complaint, and reserves its rights to raise additional defenses as may be discovered during the course of these proceedings.

FIRST DEFENSE

To the extent that Plaintiff has failed to mitigate his alleged damages, his recovery, if any, must be reduced accordingly.

SECOND DEFENSE

Any damages sustained by Plaintiff were not proximately caused by Accurate.

THIRD DEFENSE

Plaintiff is not entitled to punitive damages because Accurate made good efforts to comply with the FCRA and its reading of its obligations under the FCRA is objectively reasonable.

FOURTH DEFENSE

Accurate followed reasonable procedures to assure maximum possible accuracy in the information concerning Plaintiff in any consumer report relating to him.

FIFTH DEFENSE

Accurate followed reasonable procedures in conducting a prompt reinvestigation in response to Plaintiff's dispute and timely amending the information on Plaintiff's report.

WHEREFORE, having fully answered or otherwise responded to the allegations in Plaintiff's Complaint, Accurate prays that:

(1) Plaintiff's Complaint be dismissed in its entirety and with prejudice as to Accurate, with all costs taxed against Plaintiff;

(2) it be dismissed as a party to this action; and

(3) it recover such other and additional relief as the Court deems just and appropriate.

DATED: March 2, 2023

SEYFARTH SHAW LLP

By: */s/ John W. Drury*

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CERTIFICATE OF SERVICE

I presented the foregoing DEFENDANT'S ANSWER AND AFFIRMATIVE AND OTHER DEFENSES TO PLAINTIFF'S COMPLAINT with the Clerk of the Court using the CM/ECF system, which will send notification of such filing to all counsel of record.

/s/ John W. Drury
John W. Drury
Counsel for Defendant
Accurate Background, LLC